

Anil S/O Radheshyam Agrawal (Garg) vs Sau. Maya W/O Anil Agrawal (Garg) on 26 July, 2016

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY

NAGPUR BENCH : NAGPUR

CRIMINAL REVISION APPLICATION NO.152 OF 2010

Anil s/o Radheshyam Agrawal
(Garg), aged about 39 years,
occupation : labourer,

r/o R.A.J. 96, Scheme No.71,
Gumasta Nagar, Indore (M.P.) ig

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Applicant

- Versus -

Sau. Maya w/o Anil Agrawal
(Garg), aged about 36 years,
occupation : housewife,
c/o Jeetendra Dattulal Agrawal,

New Bhagwat Plot, Akola (M.S.)

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Non-applica

Shri M.I. Dhatrak, Advocate for applicant.

Date of reserving the judgment : 13/7/2016

Date of pronouncing the judgment : 26/7/2016

CORAM : KUM. INDIRA JAIN, J.

DATED : JULY 26, 2016

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JUDGMENT :

By this criminal revision application, applicant/ husband challenges the judgment and order dated 28/5/2010 passed by the learned Judge, Family Court, Akola in E. Petition No.83/2009 whereby petition filed by non-applicant/wife has been allowed and husband is directed to pay Rs.3000/- per month to wife towards maintenance from the date of order, i.e. 28/5/2010. He is further directed to pay lumpsum amount of Rs.30,000/- to non-applicant/wife towards maintenance from the date of filing of petition, i.e. 2/6/2007 till date of order.

2) The facts would indicate that marriage between applicant and non-applicant was performed on 22/1/2003 at Indore as per customary rites. After marriage, non-applicant joined the family of applicant consisting of his parents and married elder brother at Indore. The couple had no issue.

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3) It is the contention of wife that right from the beginning of marriage, her husband and family members were making demand of Rs.2 lacs and since demand was not fulfilled, she was being mentally and physically harassed by them. Applicant then started insisting non-applicant for divorce. On her refusal, she was ill-treated, beaten and dragged out of the house. A meeting was called and after mediation, she joined the company of her husband. Again applicant and his family members started insisting for Rs.2 lacs and continued ill-treatment to her. On second occasion, again meeting was called, matter was settled and she re-joined the company of her husband.

4) According to wife, on 29/3/2005, her husband took her signature forcibly on some papers. On

30/3/2005 she was sent to her parents' house with demand of Rs.2 lacs and she was told that till she would bring Rs.2 lacs, she should not return to matrimonial home. On 18/5/2007, brother of non-

4 revn152.10 applicant along with his friend visited the house of applicant and requested him to allow non-applicant to cohabit with him. However, applicant was bent upon his earlier demand and refused to accept non-applicant in the house. He threatened them of divorce.

5) On quantum of maintenance, it is the case of wife that applicant was running "Archana Music Centre"

and earning Rs.10,000/- per month. She claimed maintenance at the rate of Rs.3,000/- per month.

6) Application was resisted by husband. He raised manifold defences. Marriage is not in dispute. It is the case of husband that after marriage, non-

applicant was not interested in cohabiting with him.

She used to raise quarrel on petty issues and torture family members. She was not behaving properly and not doing household work. She at her whims used to leave the house and go to her parents' house at Akola without informing anyone at home. When family 5 revn152.10 members of husband were trying to know her whereabouts, they were not responded and efforts through relatives to contact non-applicant used to fail.

7) Applicant submitted that non-applicant along with her brother and relatives visited his house. A meeting was called and on 28/3/2005 a petition for divorce by mutual consent under Section 13(B) of the Hindu Marriage Act was filed before Family Court, Indore. Since 1/2/2004 non-applicant was living separately from him on her own accord and without any sufficient reason. After petition for divorce by mutual consent was presented to Family Court, Indore, non-applicant did not remain present and petition for divorce was dismissed for default. Then applicant had to file a petition for divorce on the ground of desertion before Family Court, Indore. Non-applicant was served with the notice, but she did not remain present. An ex parte decree for divorce was passed on 3/2/2007. It is the case of applicant that marriage was dissolved 6 revn152.10 and there was no relationship of husband and wife.

Before that, non-applicant had relinquished her right of maintenance on 28/3/2005 when petition for divorce by mutual consent was filed before the Family Court, Indore. She received lumpsum amount of maintenance in mutual consent divorce petition and so her right to claim maintenance under Section 125 of the Code of Criminal Procedure would not survive.

8) Non-applicant examined herself and her brother Jitendra. Applicant examined himself as a sole witness.

9) Considering the evidence of parties and submissions made, trial Court came to the conclusion that a divorcee is entitled to maintenance under Section 125 of the Code of Criminal Procedure and so there is no legal bar to grant maintenance to her. On facts, it was observed that wife was not able to maintain herself and husband was bound in law to pay 7 revn152.10 maintenance.

10) Shri M.I. Dhattrak, learned Counsel for applicant/husband, submits that in petition, non-

applicant stated that relationship of husband and wife was subsisting. Petition was never amended and she did not claim maintenance as a divorcee. He points out that had non-applicant asked for maintenance as a divorcee, applicant could have set up his defence as in the petition for divorce by mutual consent, she had given up her claim for maintenance. He urged that since she did not come with a specific case, applicant was denied an opportunity to raise and establish his defence, which was available to him.

11) With the assistance of learned Counsel for applicant, this Court has gone through the impugned judgment. In paragraph 11 thereof, learned Judge has observed that regardless of the same (amendment), since the petition is for maintenance, the Court would 8 revn152.10 not go into technicalities and would be deciding the petition as if wife is claiming maintenance as a divorcee.

12) Needless to state that foundation of each case lies in pleadings and the Court would not substitute the pleadings of the parties. By substituting the pleadings, that too at the fag end in the judgment, trial Court not only denied an opportunity to applicant to establish his defence, but also travelled beyond its jurisdiction.

13) So far as the judgments referred in paragraphs 12, 13, 14 and 17 of the impugned judgment are concerned, they reiterate well settled proposition of law that a divorced wife is entitled to maintenance. None of the cases referred is in respect of absence of pleadings regarding maintenance as a divorced wife.

14) In the above premise, without going into 9 revn152.10 further merits, this Court finds it essential to remit the matter back to the trial Court for its fresh consideration. Hence, the following order :

(i) Criminal Revision Application No. 152/2010 is allowed.

(ii) The impugned judgment and order dated 28/5/2010 passed by Family Court, Akola in E. Petition No. 83/2009 is set aside.

(iii) Matter is remitted back to the trial Court for its fresh consideration in accordance with the law.

(iv) Liberty to parties to amend their pleadings and adduce additional evidence, if any.

(v) No order to costs.

JUDGE

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CERTIFICATE

I certify that this judgment/order uploaded is a true and correct copy of original signed judgment/order.

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Kamal H. Jeswani
Private Secretary

26/07/2016